



Training Key® #434

Principles of Report Writing

Writing an accurate, clear, readable police report is an essential part of officer responsibilities. Good narrative report writing frequently makes the difference between successful or unsuccessful prosecution of an offender. Officers should be aware of and apply the general principles of good report writing for purposes of enforcement and to protect themselves and their agency against civil litigation and related charges.

Many police officers view the police report as a necessary evil of their job that primarily fulfills the needs of administrators and prosecutors. This is a serious misconception that often undermines this essential police activity. An officer's case or incident report often makes the crucial difference between a suspect being charged or released, convicted or acquitted. Therefore, the police report may have a greater short-term impact on the local community than any other form of writing.

Through the years, jurisdictions have developed standard report formats to simplify the collection of accurate crime data. The statistical part of the forms permits officers to check the appropriate box, mark an "X" in the correct space or circle the appropriate word or phrase, thereby allowing statistical information to be captured quickly and accurately. With this information, local governments can determine the nature and extent of crime in their backyard. From a larger perspective, the standardization of statistical crime data has been instrumental in tracing the growth and complexity of criminal behavior. Uniform Crime Reporting data as collected by local law enforcement agencies for the FBI provides the necessary means for comparing the crime problems of one city or area to another. But statistical data does little to help in the prosecution of individual cases. The real problem lies in the narrative portion of the report.

From a prosecutorial standpoint, the most common deficiency of police reports is that they lack detail, accuracy and clarity. The officer generally has the information needed but does not or cannot communicate it through the report. The officer may not include information in the report because he doesn't feel comfortable with his ability to express the facts, because he doesn't feel the case merits this level of effort or that it will be prosecuted, or simply because his time is lim-

ited. Sometimes the officer just doesn't believe the information is valuable. Whatever the reason, failing to record information in the report is a serious problem.

Reasons for Writing a Report

There are four generally accepted reasons for a police officer to write a report: for historical records, as a management tool, as an aid for testifying in court and as a guard against civil or related actions that may be brought against the officer or the agency. Historical records are critical to the department, the public and elected officials. Among other things, these records provide the ability to see how well an agency is doing compared to previous years or to other jurisdictions.

From a managerial perspective, police reports are also important to the local budget process. The information that they provide, for example, can mean the difference between hiring a construction worker or a police officer. Law enforcement professionals recognized the need for good records as long ago as 1829, when Sir Robert Peel persuaded the British Parliament to pass the Metropolitan Police Bill. Peel included two records-related tenets in his proposed reform of police services. He wrote: "The absence of crime will but prove the efficiency of police" and that "the deployment of police strength by both time and area is essential." Determining the level of crime and responding with the proper deployment of personnel is at least as important today as in the early 1800s.

The third basic reason for writing a report focuses on the narrative portion of the police report. The objective of police reports, according to the International City Management Association publication *Local Government Police Management*, is, "...to develop a system that yields the most complete and accurate information for police use." When written properly, the officer has the best possible tool for helping him recollect

necessary details to present the case successfully in court. As a tool for use in the prosecution of criminal cases, officers must not report conclusions or opinions as if they were facts.

The fourth purpose for the police report, simply stated, is to protect the officer and the agency from false accusations. Frequently, officers fail to write about their behavior during an incident because the action may be controversial or involve the use of force. Many officers have been led to believe that providing detailed descriptions of and reasons for their actions could raise uncomfortable questions. In fact, the opposite is true. A detailed, factual statement explaining an officer's actions is usually the best way to avoid charges of improper or illegal conduct.

The five "C's" of good police reports are: complete, clear, concise, concrete and correct. To successfully meet these five requirements, officers must use commonly accepted English that does not contain police jargon or technical terms unless absolutely necessary.

Complete

To make a complete report, an officer must understand the elements of a particular crime and be able to answer the six basic questions that police hear about so often. It is much easier to tell someone to answer the Who, What, Where, When, Why and How questions than it is to do it. There are literally dozens of questions relating to these six basic ones. These may include but are not limited to the following examples: Who was the victim? Who wrote the report? Who discovered the crime or incident? Who were witnesses? Who committed the offense? Whom did the officer interview? Who marked the evidence?

What type of offense was committed? What actions did the criminal take? What actions did the officer take? What evidence was located? What was done with the evidence? What tools or weapons were used? What further action is needed?

Where did the offense occur? Where was the evidence found? Where were the witnesses? Where is the perpetrator? Where was the suspect caught? Where was the evidence marked?

When did the incident occur? When was it discovered? When was it reported? When was the victim last seen? When did the officer arrive on the scene? When were the photographs taken?

How was the offense committed? How did the perpetrator enter the crime scene? How did he exit? How did you make the arrest? How did you get the information? How did the suspect get information to select this particular crime target?

Why was the offense committed? Why did it occur at that particular time or place? Why were witnesses afraid to talk? Why did the suspect select the tool or weapon used?

Of course these questions are not all-inclusive nor does each pertain to every event or incident. However, officers must take the time to ask such key questions as these, then try to answer them as they relate to the particular case.

Studies of reports in two police departments revealed that of the 39 evidentiary questions needed by prosecutors to present a robbery case effectively, less than 50 percent of the questions were adequately answered in one department and only about 25 percent in the other department. This research, while limited in scope, supports the views of many prosecutors that police reports often lack essential detail and com-

pleteness. It also suggests that officers in some departments make better reports than do their counterparts in other agencies.

The reason for these noticeable differences in the quality of police reports between departments is unknown. It may have a direct correlation with differences in the education, training and the level of communication between the police agency and the prosecutor's office. To prepare reports that meet the needs of the prosecutor, management from both agencies must communicate candidly and openly. If prosecutors continuously find police reports weak, the prosecutor's office must work more closely with the law enforcement agency. By working together, every officer knows the questions that must be answered based on the specific criminal offense.

Police management must see to it that all personnel are properly trained and understand the documentation needed by the agency and the prosecutor. Using a basic outline format for the narrative portion of the police report can help officers prepare a comprehensive report. In particular, police supervisors should try to focus on the prosecutor's needs as they review each report. In too many cases, such reviews are limited to an assessment of the accuracy of dates and completeness of statistical data. The most important information of any report is found in the narrative. In this context, the reviewing officer must be willing and able to show an officer the shortcomings of the report. Using a pre-formatted narrative outline will make the review and evaluation task easier.

Clear

A police report may be complete but still lack clarity. Collecting the information needed for a good report is vital, but organizing and focusing the information is equally important.

A police report contains an abundance of facts that must be coordinated and focused in order to relay useable information. However, in doing so, there is little room for an officer's opinions and conclusions. Readers must be able to draw sufficient understanding from the facts to formulate their own conclusions. Ideally, everyone who reads the same report will be guided to the same general conclusions. There are four basic strategies to accomplish this goal.

First, the officer should use direct and explicit language. The writer should not use "iffy" words and phrases nor should he omit a direct quotation from a witness and attempt to paraphrase it. Sometimes this is done in order to avoid street or gutter language commonly encountered. While this is understandable, in editing the witness's or suspect's language, the officer may significantly alter the meaning or diminish the clarity of the original message.

Second, the officer should try to avoid police jargon whenever possible. For example, do not write, "I arrested the suspect, Mr. Jones, who appeared to be a signal 24." Instead, write, "I arrested Mr. Jones, who at the time of arrest was waving his arms wildly about and shouting: 'God told me to kill him, God said he was evil.'" The first statement contained the fact that the officer arrested Mr. Jones. However, the phrase "who appeared to be a signal 24" was the officer's opinion, not a statement of fact, and used a local police code reference for a "demented person." The description of Mr. Jones waving his arms is a factual statement and clearly shows the circumstances at the time of arrest. Mr. Jones may not be demented

except in the eyes of the officer, and few police officers are trained to diagnose the mental health of a suspect.

Use short words and short sentences to express yourself. Large or technical words may sound authoritative, but they seldom add meaning to a report. Always write to express, not to impress.

Also, the active voice is more expressive than the passive voice. In the active voice, the subject acts; in the passive voice, the subject is acted upon. Notice how much stronger the sentence sounds in the active voice compared to the passive. Examples:

I shot the perpetrator (active). The perpetrator was shot by me (passive).

The mayor and council announced a cost-of-living pay raise for police (active). A cost of living pay raise for police was announced by the mayor and council (passive).

Officer Williams tagged and bagged the evidence (active). The evidence was tagged and bagged by officer Williams (passive).

Police writing should emphasize who does what.

The third element of clarity involves organizing thoughts before writing. While this may seem difficult initially, it is really quite simple. While most of the crimes and events reported by the police are different in some respects, they are similar in others. Therefore, the officer can structure the police report in advance if the communication between the police agency and the prosecutor is open and candid.

Most incident and crime reports can be organized chronologically. The initial paragraph may relate to preliminary information such as establishing jurisdiction and venue. Example: On Thursday, April 1, 1993, I, Officer John Jones, was dispatched to 234 74th St. S.W. on a burglary-in-progress call. The second portion of the report details anything that occurred on the way to the scene. Example: While proceeding west on Indiana Blvd. toward 74th St. this officer observed a red Ford Mustang occupied by a young white male who failed to stop at the stop sign. The next three elements of the report should describe the actors upon arrival on the scene, after the officer was on the scene and finally, the disposition or conclusion. This basic report format can be completed by the officer recording observations and events in the appropriate areas briefly and concisely.

If we edit that part of the report shown in the previous paragraph using short sentences, it will read better as follows: "As I drove west on Indiana Blvd, I saw a red Mustang run the stop sign on 74th St. The Mustang was going north on 74th St. The driver was a young white male." Since all the actions and activities were completed when the report was written, it should be easy to remember to use the past tense. The only time the present tense should be used in police reports is when victims, witnesses or perpetrators are being quoted.

The fourth strategy for good report writing involves using pronouns. Writing can be improved through the use of pronouns, provided the pronoun refers clearly and unmistakably to the noun it replaces. Compare the following statements: Confusing: "When Jenkins became partners with Smith in May, he did not know he would be such a good cop." The first

"he" seems to refer to Jenkins, but who would be such a good cop? Better: "When Jenkins became Smith's partner in May, he did not know Smith would be such a good cop."

Compare the following for clarity. Confusing: "Bill held the sandwich in one hand and the microphone in the other, eating it while he talked." Common sense tells us that Bill ate the sandwich, not the microphone. But the pronoun it could refer to either. Better: "Bill held the sandwich in one hand and the microphone in the other, eating the sandwich while he talked." Similarly, which of the following is better? "Mary's partner said she couldn't arrest the suspect" or "Mary's partner told her not to arrest the suspect." In the first example, the reader cannot be sure who couldn't arrest the suspect: Mary or her partner. The second example is better because it clearly tells the reader what the writer intended.

Concise

Conciseness and clarity are directly related. A police report should only be as long as necessary to provide requisite information. The Little, Brown Handbook published by Little, Brown & Co., states: "Conciseness - brevity of expression - aids emphasis no matter what the sentence structure. Unnecessary words detract from necessary words. They clutter sentences and obscure ideas." The language in the report should be simple and direct. The efficiency of any report is found partly in the economy of words. Get the message across in the shortest and easiest way possible. Simplicity is the key.

To be concise, separate each idea into its own sentence. Do not try to combine several thoughts into one long sentence. Length confuses the reader. Reading tests have demonstrated that shorter sentences are easier to read. One of the best ways to eliminate long sentences is to replace connective words such as "and" and "but" with a period. Example: "Mr. Jones told me that he had received a phone call from Elliott Jenkins, but he didn't remember the time of the call." This sentence reads better as: "Mr. Jones told me he had received a phone call from Elliott Jenkins. He didn't remember the time of the call." If the connective word needs to be retained to maintain continuity of thought, it is generally better to start the next sentence with that word.

Concrete

The language used in the police report must be specific. Officers must stick to the facts while including sufficient detail. Vaguely worded sentences may result in different readers reaching different conclusions.

Sometimes the officer has no choice but to be vague in the report, but specific information should be used when it is available. Review the following examples: Abstract - "The majority of witnesses said that the suspect had blonde hair." Specific - "Four of the five witness said that the suspect had blonde hair." Abstract - "I told the victim I would call him in the near future." Specific - "I told the victim I would call him on Thursday at about 1700 hours." Abstract - "A large crowd had gathered by the time I arrived on the scene." Specific - "Approximately 50 to 60 people were present when I arrived on the scene."

Avoid using cliches in reports. Cliches are defined as trite expressions or ideas. When the cliché was originated, it probably had a special significance or emphasis attached to it. But time has eroded the purpose and meaning to the extent that

cliches are practically useless. They add nothing to the police report. Keep statements like these out of your reports: dead as a doornail, depths of despair, hasty retreat, birds of a feather flock together, sink or swim, the whole nine yards and similar expressions.

Correct

An officer can satisfy all other requirements of a good police report, but if it is incorrect, it is of little value.

The best way to prevent incorrect reports is to proofread. Make sure each sentence makes complete sense. Does the verb match the noun or pronoun? If the noun is singular, the verb also must be singular. Is the sentence complete? Is the idea communicated clearly? Are sentences too long and confusing? Would dividing the sentence into two or more sentences make the thought flow faster and better? Look for transposed letters and numbers. Corrections must be made before the report is submitted. Double-check all days, dates and times mentioned in the report. Carefully proofreading your report should identify these and related types of common errors.

If errors are missed even after proofing, reading the report backward may help. In this way, reading is slower, and errors may be identified more easily. The report reflects an officer's level of education, degree of competence and professionalism. As such, the credibility of the officer is in many ways linked to how well his report is written.

Another potential problem area involves spelling. When spelling the names of victims, witnesses and suspects, officers often automatically use the spelling that is familiar to them. Smith could be spelled S-m-y-t-h; Culpepper could be spelled C-u-l-l-p-e-p-p-e-r, and the name one thinks is Johnson may be Johnston. When in doubt, an officer should always ask for the correct spelling. Most of us like to be called by our correct name and resent it when it is misspelled. Officers should remember that misspelling records of names and addresses may result in misdirected subpoenas and missed court dates. Another solution is to make and keep a list of words that are misspelled most often.

The 40-40-20 Rule

Looking at the report writing process in three stages helps to understand it better. The first stage is writing detailed notes into a prepared format. This is done by combining words, phrases and a few complete sentences. Placing comments into an existing format will reduce the time needed to organize thoughts into an effective report. It may be useful to separate each idea with a bullet, asterisk or other recognizable symbol. This style can even be retained in the final report if it makes the report more readable, complete and concise.

After taking notes, write the first draft using the basic pre-structured format. Be sure to double-space between lines in the first draft to provide room for revisions. This entire process should take about 40 percent of the total time needed to complete a good report. This approach can be examined more closely by applying it to a case example - in this instance, writing an arrest report for driving while intoxicated. Following is a sample DWI report format. The statements relate to notes made about the case.

A. Preliminary:

- Routine patrol in area of Indiana and 74th St. in Unit 714.

- April 1, 1993: 1345 hours

B. Observations:

- Red Mustang traveling North on Indiana from 74th St.
- Vehicle being driven very slowly
- Vehicle almost struck two parked cars on Indiana
- Vehicle crossed street and struck curb
- Took two blocks to get driver to stop after engaging blue lights and siren

C. Actions Before Arrest:

- Car stopped at Indiana and 77th St.
- Driver a W/F
- Asked for D.L. and insurance
- Smelled strong odor of alcohol on her breath
- D.L. showed her as Mary Jones W.F. 34 Y.O.A.
- Lives at 4567 Tupolo Dr.
- Did 3 field sobriety tests:
 1. Straight line 15 ft. (lost balance, almost fell)
 2. Stand on one foot with eyes shut (could not do)
 3. Lean back and touch nose with forefinger (touched high on forehead with left, low on forehead with right)

D. Actions After Arrest:

- read implied consent
- She informed me she had been drinking since early morning
- Tried to give me \$50 to let her go.

E. Conclusion:

- Left Unit 625 with Mustang to impound
- Took Ms. Jones to station and gave Certified Intoximeter test.
- Completed booking report
- Allowed Jones to make phone call

With the information shown above, the officer could write a good DWI report. By placing the notes under predetermined categories, he simplified the process. Fine-tuning the report through better organization and a clear writing style will produce a top-quality police report.

The second phase is critical for completing the report. About 40 percent of time needed to write a report is devoted to proofreading, evaluating and editing the report. Before writing the final version of the report, the writer should take a few minutes to read the edited version aloud. Ears may pick up what the eyes have missed. If it doesn't sound clear and complete, there is still some work to do before moving to the last phase of writing.

The last phase involves rewriting the edited, correct, tightly written report. To improve neatness on the hand-written report, officers should take a little extra time to form the letters and space the words. In all, it generally takes about 40 percent of an officer's time to prepare a good first draft, 40 percent to evaluate and edit the draft and 20 percent to write a professional-looking final report.

Conclusion

Attempting to apply every technique discussed here may seem to be an overwhelming task. As a result, one may think that report writing is too difficult. Henry Ford realized that building a car was a complex undertaking. He met the problem head-on and pioneered the assembly-line method of mass production. Ford said, "No job is too difficult when you break

it into small enough parts.” This advice can also be applied to report writing. Break your reports into component parts and segments and address each systematically and individually. Report writing will be faster, simpler and better.

Acknowledgement

This Training Key was prepared by D.M. “Mike” Edwards of Decatur, Georgia.

questions

The following questions are based on material in this *Training Key*®. Select the best answers.

1. Which of the following statements is true?

- (a) *Police reports are used primarily for administrative and management purposes.*
- (b) *The most common deficiency of police reports is that they lack detail, accuracy and clarity.*
- (c) *The most important function of police reports is the compilation of statistical crime data.*
- (d) *Prosecutors can perform their jobs just as well without complete and accurate police reports.*

2. Which of the following statements is false?

- (a) *Good police reports can help protect an officer and his agency from false accusations.*
- (b) *Providing detailed accounts of and reasons for an officers use of force in a police report is only self-incriminating.*
- (c) *Officers should not report conclusions and opinions as though they are facts.*
- (d) *Using a standard format for a narrative report helps improve organization and clarity.*

3. Which of the following statements is false?

- (a) *Answering, who, what, where, when, why and how questions are essential in developing a complete report.*
- (b) *Open and candid communication between the police agency and the prosecutor's office is essential to developing useful police reports.*
- (c) *Police reports may be complete but still lack clarity.*
- (d) *The use of police jargon in reports is useful in precisely expressing the actions and procedures of officers.*

answers

- 1. (b) Problems with police reports generally involve a lack of detail, accuracy and/or clarity.
- 2. (b) Providing complete and accurate accounts and explanations of officers' use of force is one of the most important means of defense against unjustified accusations.
- 3. (d) Police jargon should be avoided in police reports whenever possible.

have you read...?

"The Offense Report," *Training Key*® #288, International Association of Chiefs of Police, Alexandria, VA 22314-2357.

This *Training Key*® provides specific information on conducting interviews and recording information relative to the police offense report.

